

**THE COMMONWEALTH OF MASSACHUSETTS
TOWN OF WESTHAMPTON
ANNUAL TOWN MEETING WARRANT**

HAMPSHIRE SS.

To either of the Constables of the Town of Westhampton in the County of Hampshire

GREETINGS

IN THE NAME OF The Commonwealth of Massachusetts, you are hereby directed to notify and warn the inhabitants of said Town, qualified to vote in elections and in Town affairs, to meet at the **TOWN HALL, 1 SOUTH ROAD** in said WESTHAMPTON on **SATURDAY the ELEVENTH day of MAY, TWO THOUSAND TWENTY FOUR at 9:00 o'clock in the morning**, and there to act on the following articles:

ARTICLE 1: To hear and act on all reports presented at said meeting.

ARTICLE 2: To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for **the payment of unpaid bills of previous years**, incurred by the departments, boards and officers of the Town of Westhampton, or take any other action relative thereto.

<i>Invoice #</i>	<i>Vendor</i>	<i>Date</i>	<i>Amount</i>
14324	Lower Pioneer Valley Educational Collaborative	June 8, 2023	\$68.96
14372	Lower Pioneer Valley Educational Collaborative	June 8, 2023	\$293.88
142439	KP Law, P.C..	May 19, 2023	\$801.84
143401	KP Law, P.C.	June 30, 2023	\$561.06
TOTAL:			\$1725.74

ARTICLE 3: To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for expenses relative to the Snow Removal Account for Fiscal Year 2024, or take any action relative thereto.

ARTICLE 4: To see if the Town will vote, pursuant to M.G.L. c.44, §53 ½, to establish a new revolving fund to be known as the **Electric, Plumbing and Gas Inspections Revolving Fund**, and to amend the General Bylaws by inserting a new section, Section 5-4-4-3, as set forth below, and further that any amounts in said revolving fund to remain therein until expended consistent with the Bylaw:

Electric, Plumbing and Gas Inspections Revolving Fund: For expenses of electric, plumbing and gas inspections, including stipends paid per inspection to inspectors, to be funded by electric, plumbing and gas inspection permits and fees, and to be expended without further appropriation by the Building Commissioner(s).

or take any action relative thereto.

ARTICLE 5: To see if the Town will vote to amend the Bylaws of the Town of Westhampton, Section 5-4-4-2:

5-4-4-2 – For the maintenance, upkeep and groundskeeping of the Westhampton Cemetery, to be funded by ~~sales of plots and~~ burial fees, and to be expended without further appropriation by the Cemetery ~~Superintendent~~ **Commission**.

or take any action relative thereto.

ARTICLE 6: To see if the Town will vote to authorize the Selectboard to acquire by purchase, gift, eminent domain or otherwise, the fee to and/or permanent and/or temporary easements for public way purposes, including without limitation, for the construction, alteration, installation, maintenance, improvement, repair, replacement and/or relocation of rights of way, bridges, sidewalks, drainage, utilities, driveways, guardrails, slopes, grading, rounding, landscaping, and other appurtenances and/or facilities, to enable the Town to undertake the Perry Hill Road Extension Over North Branch Manhan River Improvement Project and for any and all purposes incidental or related thereto, in, on and under certain parcels of land, and land adjacent to and within 200 feet of said parcels, said parcels located on Perry Hill Road and shown more particularly on plans entitled “Massachusetts Department of Transportation Highway Division Plan and Profile of Perry Hill Road Extension Over North Branch Manhan River Hampshire County Bridge No. W-27-028 (OTA)” revised through July 2023, prepared by Garofalo & Associates, Inc., said plans on file with the Town Clerk, as said plans may be amended and/or incorporated into an easement plan; and further, to raise and appropriate, transfer from available funds, and/or borrow a sum of money to fund the foregoing and any and all costs incidental or related thereto, including, without limitation, the cost of any land/easement acquisitions; and, further to authorize the Selectboard to enter into all agreements and take any and all actions as may be necessary or appropriate to effectuate the foregoing purposes, or take any other action relative thereto.

ARTICLE 7: To see if the Town will vote to reduce the composition of the Finance Committee from ten to seven members, by amending the Bylaw of the Town of Westhampton, Section 3-1-1 (b), with deletions in strikethrough and additions in bold underlined text, all as set forth below:

(b) a Finance Committee of ~~ten~~ **seven** members, elected for overlapping three-year terms;

or take any other action relative thereto.

ARTICLE 8: To see if the Town will vote to **accept the provisions of M.G.L. Chapter 143 , Section 3Z**, which would permit the Town’s part-time building inspectors to practice for hire or engage in the business for which they are certified, licensed or registered under the building code, while serving as such inspector, provided that the inspection of their work shall be performed by the inspector of buildings or building commissioner of another city, town or district, or take any other action relative thereto.

ARTICLE 9: To see if the Town will vote **to accept the provisions of M.G.L. Chapter 40, Section 22F**, subject to the restrictions set forth in the statute, which acceptance would allow Town boards and officers to fix reasonable fees and charges for the issuance of a license, permit, or certificate, or for services rendered or work performed, or take any other action relative thereto.

ARTICLE 10: To see if the Town will vote **to charge for each written demand issued by the collector a fee of \$10.00** to be added to and collected as part of the tax, as authorized by M.G.L. Chapter 60, Section 15, effective as of July 1, 2024, or take any other action relative thereto.

ARTICLE 11: To accept any and all funds being provided by the Commonwealth of Massachusetts **Department of Transportation (MassDOT), under the provisions of Chapter 90 of the Massachusetts General Laws**, and to pay for such costs as allowed by appropriate legislation in connection with the maintenance, repair, and construction of Town ways and bridges, or take any other action relative thereto.

ARTICLE 12: To see if the Town will vote to authorize the Selectboard to **apply for and expend grants** from federal or state programs, or take any other action relative thereto.

ARTICLE 13: To see if the Town will vote, pursuant to M.G.L. c.44, §53E 1/2, to set the annual expenditure limits for each of the following **Revolving Funds**, both of which are set forth in Section 5-4-4 of the General Bylaws, and, further, to provide that such annual expenditure limits be applicable from fiscal year to fiscal year until otherwise amended by Town Meeting prior to July 1 in any fiscal year, or take any other action relative thereto.

FY2025 – REVOLVING FUNDS

FUND	PURPOSE	SOURCE OF FUNDS	MAX AMOUNT
Fire Department	Materials, supplies and training	Inspection Fees	\$4,000.00
Westhampton Cemetery	Cemetery upkeep, maintenance, and grounds-keeping	Burial Fees	\$8,000.00
Electric and Plumbing Inspections	Stipends and expenses of plumbing, gas and electric inspectors	Permit and Inspection Fees	\$6,000.00

ARTICLE 14: To see if the Town will vote to **set the salaries of elected officials for the 2025 Fiscal Year**, and to raise and appropriate, or otherwise provide a sum of money for **Salaries and Compensation**, or take any other action relative thereto.

ARTICLE 15: To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to **General Government** for the 2025 Fiscal Year, or take any other action relative thereto.

ARTICLE 16: To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to **Fire, Police, EMS and Ambulance Services** for the 2025 Fiscal Year, or take any other action relative thereto.

ARTICLE 17: To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to **Building Inspections and Other Public Safety Services** for the 2025 Fiscal Year, or take any other action relative thereto.

ARTICLE 18: To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to the **Westhampton Elementary School** for the 2025 Fiscal Year, or take any other action relative thereto.

ARTICLE 19: To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to **Hampshire Regional School** for the 2025 Fiscal Year, or take any other action relative thereto.

ARTICLE 20: To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to **Vocational School Tuition** for the 2025 Fiscal Year, or take any other action relative thereto.

ARTICLE 21: To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to **Vocational School Transportation** for the 2025 Fiscal Year, or take any other action relative thereto.

ARTICLE 22: To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to **Road and Highway Maintenance and Facilities** for the 2025 Fiscal Year, or take any other action relative thereto.

ARTICLE 23: To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for **Snow Removal** for the 2025 Fiscal Year, or take any other action relative thereto.

- ARTICLE 24: To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for the **Operation of the Transfer Station and Maintenance of the Westhampton Landfill** for the 2025 Fiscal Year, or take any other action relative thereto.
- ARTICLE 25: To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to the **Operation and Maintenance of the Westhampton Cemetery** for the 2025 Fiscal Year, or take any other action relative thereto.
- ARTICLE 26: To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to **Public Health** for the 2025 Fiscal Year, or take any other action relative thereto.
- ARTICLE 27: To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to the **Westhampton Council on Aging** for the 2025 Fiscal Year, or take any other action relative thereto.
- ARTICLE 28: To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to **Veterans Benefits and Services** for the 2025 Fiscal Year, or take any other action relative thereto.
- ARTICLE 29: To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to the **Westhampton Public Library** for the 2025 Fiscal Year, or take any other action relative thereto.
- ARTICLE 30: To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to **Culture and Recreation Activities** for the 2025 Fiscal Year, or take any other action relative thereto.
- ARTICLE 31: To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to **Employment Benefits, Insurance and other Mandated Expenses** for the 2025 Fiscal Year, or take any other action relative thereto.
- ARTICLE 32: To see if the Town will vote to appropriate, borrow, or transfer from available funds a sum of money for the purchase of a **solar photovoltaic energy generation system to be constructed at the Westhampton Public Safety Complex**, including design and engineering services, permitting, installation, interconnection services, any other necessary equipment or services, and all other incidental and related expenses, or take any other action relative thereto.
- ARTICLE 33: To see if the Town will vote to appropriate, borrow, or transfer from available funds a sum of money for the purchase of a **wheeled excavator** for use by the Westhampton Highway Department, with requested and necessary upfit equipment and additions, or take any other action relative thereto.
- ARTICLE 34: To see if the Town will vote to appropriate, borrow or transfer from available funds a sum of money for the purchase of replacement **computer workstations, laptops, monitors, printers, and accessories**, including all incidental and related expenses, for use by municipal employees at the Town Hall, Town Annex, Westhampton Public Library, and Public Safety Complex, or take any other action relative thereto.
- ARTICLE 35: To see if the Town will vote to appropriate, borrow or transfer from available funds a sum of money for the **Town of Westhampton Sesquicentennial Celebration, to be held in 2028**, in accordance with Section 53I of Chapter 44 of the General Laws, or take any other action relative thereto.

ARTICLE 36: To see if the Town will vote to **transfer** the sum of \$8,815.82 **from fund #01 5 210.709, "Opioid Treatment & Prevention" to Fund #24 5 460.000, "Opioid Treatment & Prevention"**, a Special Revenue Fund established by M.G.L. Chapter 44 Section 53, as amended by Chapter 77 of the Acts of 2023, Section 9, or take any other action relative thereto.

ARTICLE 37: To see if the Town will vote to **rescind authorization for authorized but unissued debt**, or take any other action relative thereto.

ARTICLE 38: To see if the Town will vote to transfer from Free Cash, or other available funds, a sum of money to the **General Stabilization Fund**, or take any action relative thereto.

ARTICLE 39: To see if the Town will vote to transfer from Free Cash, or other available funds, a sum of money to **Balance the Budget and to Reduce the Tax Rate** for the Fiscal Year 2025, or take any other action relative thereto.

HEREOF FAIL NOT, and make due return of this Warrant, with your doings thereon, to the Town Clerk, at the time and place of meeting, as aforesaid.

Given under our hands this 1st day of May, 2024.

Maureen Dempsey

[Signature] Selectboard of Westhampton

Susan Bronsh

A true copy, ATTEST: Rolant E. Miller Constable of Westhampton

HAMPSHIRE, ss.

PURSUANT TO THE WITHIN WARRANT, I have notified and warned the inhabitants of the Town of Westhampton by posting up attested copies of the same at the Town Hall, Town Clerk's Office, Westhampton Public Library and Outlook Farm, at least seven days before the date of the meeting, as within directed.

Return of Service: Rolant E. Miller Constable 5/1/24 Date